

CHAPTER 33.

An Act to make further provision for the application of the Asylums Officers Superannuation Act, 1909, to officers in certified institutions for defectives, and to provide for the aggregation of service in asylums and in such institutions. [8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Subject to such adaptations and modifications as the Secretary of State may by order prescribe and subject as hereinafter provided, the Asylums Officers Superannuation Act, 1909, shall apply and shall be deemed always to have applied to officers and servants employed in certified institutions for defectives as if references in that Act to asylums included references to such institutions, and as if in relation to officers and servants of such an institution references to the visiting committee of an asylum included references to the managers of the institution :

Application of
9 Edw. 7. c. 48
to officers and
servants of
certified insti-
tutions for
defectives.

Provided that—

- (a) An officer or servant employed in a certified institution shall be treated as an officer or servant of the second class :
- (b) The power under subsection (3) of section two of the said Act to add years to the actual years of service shall not apply in respect of service in certified institutions :
- (c) The rate of contribution for an officer or servant employed in a certified institution shall be two and a half per cent. of the salary or wages and emoluments for each year, except that in the case of an officer or servant who has removed from an asylum to a certified institution and who at the time of his so removing was liable to contribute at the rate of two per cent., the rate shall be two per cent. only :
- (d) The superannuation allowance of an asylums officer or servant of the first class who has removed to a certified institution shall, in respect of his asylums service, be calculated by reference to fiftieths instead of sixtieths, and an officer who has so removed before the date of the commencement of this Act or who so removes within five years after that date shall, if he has been in the service of an asylum as a first class officer or servant for not less

than ten years, become qualified for receiving a superannuation allowance at the age of fifty-five years instead of at the age of sixty years.

3 & 4 Geo. 5.
c. 28.
3 & 4 Geo. 5.
c. 38.

(2) In this section the expression "certified institutions for defectives" means certified institutions provided by local authorities under the Mental Deficiency Act, 1913, or by district boards under the Mental Deficiency and Lunacy (Scotland) Act, 1913.

(3) In the application of this section to Scotland, the Secretary for Scotland shall be substituted for the Secretary of State.

Short title
and repeal.

2.—(1) This Act may be cited as the Asylums and Certified Institutions (Officers Pensions) Act, 1918.

(2) Section forty-five of the Mental Deficiency Act, 1913, and section thirty-six of the Mental Deficiency and Lunacy (Scotland) Act, 1913, shall be deemed never to have had effect and are hereby repealed.

CHAPTER 34.

An Act to enable the statutory provisions affecting the charges which may be made in respect of certain undertakings to be temporarily modified.

[8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Modifications
of statutory
provisions
affecting
charges.

1.—(1) Where it appears to the appropriate Government Department that the financial position of any undertaking to which this Act applies has been adversely affected by circumstances arising out of the present war, the Department may, if they think fit, by order provide for the modification of any statutory provisions regulating the charges to be made by the undertakers, and of any statutory provisions consequential on or supplemental to any such provisions as aforesaid, for such period during the continuance of this Act, in such manner, and subject to such conditions, as appear to the Department to be just and reasonable :

Provided that—

(a) where the undertakers are a local authority no modification shall be authorised which will increase the statutory maximum charge by more than fifty per cent., or which is more than sufficient so far as can be estimated to enable the undertaking to be carried on without loss ; and